Wire Payment Agreement

Thank you for choosing TD to complete your wire payment. Before signing, please read the Agreement below to be sure you understand your rights, responsibilities, and risks in relation to the wire payment.

Customer:
MR TIM J LATIMER

Date:
June 8, 2019

Wire Payment ID:
190610B6530300

Street Address:
46 WINDERMERE DR SW

Branch:
00559

Financial Transaction ID:
00027364

City:
EDMONTON

Province/State:
AB

Wire Payment Amount:
60,000.00 (USD)

Country:
CANADA (CA)

TD Service Fee:
80.00 (CAD)

Customer Account:
559 6223828

Wire Recipient:
BUY PLAYA SA DE CV

Wire Recipient's Financial Institution:
SCOTIABANK INVERLAT S.A

Street Address:
AVE10NTE224ENTRE12Y14NTE LOCAL6B

Street Address:
LORENZO BOTURINI 202

City:
PLAYA DEL CARMEN

Province/State:

City:
COLONIA TRANSITO

Province/State:

Country:
MEXICO (MX)

Country:
MEXICO (MX)

Account#/IBAN:
044694237000081332

Bank Code:
MBCOMXMM

Customer Code:

Intermediary Bank Account#:

Reviewing This Wire Payment Agreement

In this Agreement, you will find the following information:

- Section 1: Wire Payment Process
- Section 2: Wire Payment Fees
- Section 3: Returned, Held, or Rejected Payments
- Section 4: Legal Responsibilities
- Table 1: Wire Payment Fees Charged By TD's Correspondent Bank Relationships

In addition, we use the following terms throughout the Wire Payment Agreement (the ***Agreement***) and want to make sure you understand what they mean:

You and ***your*** refer to the Customer.

We, ***us***, ***our***, and ***TD*** refer to The Toronto-Dominion Bank.

Section 1: Wire Payment Process

1.1 What does your signature authorize?

By signing this Agreement, you:

- **Confirm** that the information on page 1 is accurate and complete.
- **Agree** to the terms and conditions outlined in this Agreement.
- **Agree** to pay all fees related to the wire payment as outlined in this Agreement.
- **Authorize** us to send the wire payment based on the information you provide us.

1.2 Why is providing correct information important?

We will process the wire payment based on the information you provide us. Please make sure all information for your intended Wire Recipient is correct, as we will send the wire payment based on that information. If you provide the wrong account number or name, the Wire Recipient's Financial Institution may credit that account, even if you intended to send money

to someone else. Providing the wrong information can also interfere with, delay, or prevent the wire payment's completion.

1.3 What currency will be used for the wire payment?

When you request a wire payment, you authorize us to send the funds using the currency listed under Wire Payment Amount at the beginning of the Agreement. If you are sending a wire payment in a currency that is different from the TD account you are using to fund it, we will quote our foreign-currency exchange rate. You then can choose whether to go ahead with the purchase using our exchange rate. If you agree to move forward, you are accepting the disclosed exchange rate.

In addition, after a wire payment leaves TD, it may be converted to another currency. For example, currency conversion may be necessary if you sent the wire payment without using the local currency of the Wire Recipient's Financial Institution or Wire Recipient's account.

1.4 Can you change or cancel a wire payment?

Wire payments are final. Once TD has processed the wire payment, we cannot reverse it.

If you request a change to or cancellation of the wire payment, we will try to do so on a commercially reasonable efforts basis only. We cannot guarantee that a wire payment change or cancellation is possible, in part because we no longer control the funds after they leave TD. Fees will apply for any change or cancellation request.

1.5 When will we send the wire payment?

We will send the wire payment during our processing hours on a business day (excludes weekends and holidays).

1.6 When will the Wire Recipient receive the funds?

Various factors may affect when the Wire Recipient receives the funds, including:

- Global time zone differences
- Applicable holidays and business days
- Location of Wire Recipient's Financial Institution
- Insufficient, incomplete, or inaccurate information
- Regulatory, fraud, and other risk and control policies and procedures

1.7 Who will be involved in processing your wire payment?

In addition to TD, the institutions involved in processing your wire payment may include any of the following:

- **Institutions Connected to TD**
  - Our affiliates
  - TD's correspondent bank relationships
  - Any other third party that TD uses

  Together, we refer to these parties as ***Sender Parties***.

- **Intermediaries**
  - Intermediary institutions used by either TD's or the Wire Recipient's Financial Institution's correspondent bank relationships

  Together, we refer to these parties as ***Intermediaries***.

- **Institutions Connected to the Wire Recipient's Financial Institution**
  - The Wire Recipient's Financial Institution
  - The Wire Recipient's Financial Institution's correspondent bank relationships

  Together, we refer to these parties as ***Receiver Parties***.

In order to process international wire payments, financial institutions may rely on the use of a correspondent bank relationship to route a payment to the Wire Recipient's financial institution. Both TD and the Wire Recipient's Financial Institution may individually use correspondent bank relationships. The correspondent bank may also require the use of an intermediary financial institution.

1.8 Will you need to provide additional information?

To comply with law or internal requirements, we or some of the Sender Parties, Intermediaries, and Receiver Parties involved in processing your wire payment may require additional information (including information about the Wire Recipient). This information may be subject to the laws of foreign jurisdictions.

Section 2: Wire Payment Fees

2.1 What fees apply? How are they charged?

You acknowledge and agree that your wire payment is subject to the following fees:

- **TD Service Fee**, which we list on page 1 of this Agreement. We will debit this fee from any TD account you have with us.
- **Fee charged by TD's correspondent bank relationship**, which we list in Table 1 at the end of this Agreement. TD's correspondent bank relationship deducts this fee from the Wire Payment Amount. As a result, the Wire Recipient may receive less than the Wire Payment Amount listed on page 1 of this Agreement.

2.2 What other fees or amounts may apply, and how are they charged?

Intermediaries and Receiver Parties involved in processing your Wire Payment may deduct fees or other amounts from the Wire Payment Amount. You acknowledge and agree that, as a result, the Wire Recipient may receive less than the Wire Payment Amount listed on page 1 of this Agreement. We do not know the fees or other amounts that Intermediaries and Receiver Parties may apply.

Section 3: Returned, Held, or Rejected Wire Payments

3.1 Who can reject or return a wire payment?

TD, Sender Parties, Intermediaries, and Receiver Parties may reject a wire payment. If this occurs, we will contact you.

3.2 What might prevent a wire payment from completing?

Policies and/or law may require TD, the Sender Parties, Intermediaries, or the Receiver Parties to either reject, freeze, or hold a wire payment. These reasons include:

- Payments to certain countries or persons subject to economic sanctions
- Inaccurate or insufficient information detected in the wire payment
- Regulatory, fraud, and other risk and control policies and procedures
- Other reasonable grounds from time to time

3.3 Will you receive a full refund for a rejected wire payment or successful cancellation request?

If one of the Sender Parties, Intermediaries, or Receiver Parties rejects a wire payment, it may deduct fees from the Wire Payment Amount. When this happens, the amount credited back to your account may be less than the original Wire Payment Amount.

In addition, if you instruct us to send a wire payment using a currency different than your account's and it is returned for any reason, including a successful cancellation request, we will convert the returned wire payment back to your account's currency. In this case, we will:

- Determine the exchange rate to use when we receive your funds
- Credit that converted amount to your account

When this happens, the exchange rate we use to deposit the returned money may be different than the exchange rate used to transfer it. As a result, the amount returned to your account may be different than the original amount you transferred.

Section 4: Legal Responsibilities

4.1 Are there limits on the liability of TD or other parties?

TD is not liable for any losses or damages resulting from:

- Inaccurate or insufficient information provided by you
- Currency conversions or changes in foreign currency exchange rates
- Acts or omissions by us, our affiliates, or TD's correspondent bank relationships, except as listed in 4.2
- Acts or omissions of any other third party that TD uses, the Intermediaries, and the Receiver Parties, including for their gross negligence or willful misconduct

TD and the Sender Parties are not liable for any losses or damages resulting from:

- Delay or mistake in sending the wire payment
- Forged or unauthorized instructions provided in connection with the wire payment
- Rejection of the wire payment
- Measures taken by a domestic or foreign government

TD is not liable for any losses or damages resulting from the Sender Parties, the Intermediaries, or the Receiver Parties:

- Deducting fees from the Wire Payment Amount
- Rejecting the wire payment
- Being insolvent, except for our affiliates

TD, the Sender Parties, the Intermediaries, and the Receiving Parties are not liable for:

- Any loss associated with rejected, frozen, or held wire payments
- Any delay related to sanctions screening, regulatory requirements, or otherwise

4.2 What type of damages is TD liable for?

TD's liability, if any, is limited to direct damages that are the direct result of:

- Our and our affiliates' negligence, including willful misconduct or gross negligence
- TD's correspondent bank relationships' willful misconduct or gross negligence

TD and the Sender Parties are not liable for any consequential, special, indirect, or punitive damages.

Table 1: Wire Payment Fees Charged by TD's Correspondent Bank Relationships
(By Currency)

Most Common Currencies

British Pound (GBP)	GBP 0.00 to 100.00: GBP 0.00 GBP 100.01 to 250.00: GBP 6.00 GBP 250.01 and above: GBP 10.00
Canadian Dollars (CAD)	CAD 10.00
Euro (EUR)	EUR 0.00 to 250: EUR 6.00 EUR 250.01 and above: EUR 12.00
United States Dollar (USD)	USD 10.00

Other Currencies

Australian Dollar (AUD)	AUD 24.00 (in Australia), AUD 50.00 (outside Australia)
Barbadian Dollar (BBD)	BBD 20.00 (plus draft charge if applicable)
Czech Koruna (CZK)	CZK 0.00 to CZK 200: CZK 0.00 CZK 200.01 and above: 1% of payment amount Minimum CZK 300.00, Maximum CZK 2000.00
Danish Krone (DKK)	DKK 75.00
Eastern Caribbean Dollar (XCD)	XCD 35.00
Emirati Dirham (AED)	AED 50.00 (in UAE), Up to AED 100.00 (outside UAE)
Hong Kong Dollar (HKD)	HKD 200.00
Hungarian Forint (HUF)	USD 25.00
Indian Rupee (INR)	INR 250.00
Israeli Shekel (ILS)	0.125% of payment amount Minimum USD 5.55, Maximum USD 58.50
Japanese Yen (JPY)	0.05% of payment amount Minimum JPY 2500, Maximum JPY 4500
Mexican Peso (MXN)	USD 14.00 + Mexico's value-added tax
New Zealand Dollar (NZD)	NZD 25.00
Norwegian Krone (NOK)	NOK 25.00
Philippine Peso (PHP)	PHP 300.00
Polish Zloty (PLN)	PLN 25.00
Saudi Arabian Riyal (SAR)	SAR 31.00 (in Saudi Arabia), SAR 40.00 (outside Saudi Arabia)
Singapore Dollar (SGD)	SGD 20.00 (in Singapore), SGD 50.00 (outside Singapore)
South African Rand (ZAR)	0.35% of payment amount Minimum ZAR 100.00, Maximum ZAR 450.00
Swedish Krona (SEK)	SEK 25.00
Swiss Franc (CHF)	CHF 0.00 to 150.00: CHF 0.00 CHF 150.01 and above: CHF 12.00 (in Switzerland), CHF 25.00 (outside Switzerland)
Thailand Baht (THB)	0.25% of the payment amount Minimum THB 200.00, Maximum THB 500.00
Turkish Lira (TRY)	USD 10.00

Fees are subject to change.

By signing below, you agree to the Wire Payment Agreement:

_____

Customer Signature/Authorized Signature

Branch: 0559 EDMONTON
TERWILLEGAR
490 RIVERBEND SQUARE NW
EDMONTON, AB

Date: Jun 8, 2019, 11:12 AM
Ref #: 00027364/8 - ZGAO

From: 559-62***28
Debit Memo
LATIMER T
80,864.00

To: Wire Payment

BUY PLAYA SA DE CV

Payment ID
190610B6530300
60,000.00 USD

To: 559-469 Wire Processing
Fee
40.00

To: 559-469 Wire Service Fee
40.00

Sell 60,000.00 USD (AFX Ref #
191610006)
(80,784.00 CAD @ 1.346400
Borderless)

From: Cheque Total
81,000.00

To: 559-62***28
Deposit
LATIMER T
81,000.00

Account Balance:
559-62***28: 1,882.14

Thank You for banking with TD.
For information call